REPUBLIC OF KENYA

IN THE BUSINESS PREMISES RENT TRIBUNAL AT NAIROBI

TRIBUNAL CASE NO. E640 OF 2025

BETWEEN

NURU PHARMACY LIMITED ..... TENANT

AND

JAMHURI PLAZA PROPERTIES LIMITED ..... LANDLORD

RULING

Coram: Hon. G. N. Kiprop-Atieno, Vice Chair

Delivered on 30th April 2026

1. The Tenant has occupied shop number G14 at Jamhuri Plaza since 2018 under a lease that, by clause 3.1, renews automatically for successive terms of 2 years unless either party gives 90 days' written notice.

2. On 6th January 2026 the Landlord issued a notice increasing rent from KES 85,000 to KES 140,000 per month with effect from 1st February 2026 and, when the Tenant refused to pay, locked the shop on 12th February 2026.

3. A landlord may not lock out a tenant or levy distress without following the procedure for termination or alteration of terms of a controlled tenancy. The lock-out was unlawful.

4. The right to property in Article 40 of the Constitution does not entitle a landlord to resort to self-help against a tenant in occupation.

5. The Landlord shall restore the Tenant to the premises within 24 hours. The notice of 6th January 2026 is set aside. The Landlord may seek a review of rent in the proper manner, supported by a valuation report.

6. Costs of the reference are awarded to the Tenant.

G. N. KIPROP-ATIENO
VICE CHAIR